

DRIVEGUARD WARRANTY SOLUTIONS LLC

Finance & Insurance Products Partnership Agreement

RECITALS

This Finance & Insurance Products Partnership Agreement ("Agreement") is made and entered into as of September 1, 2026, by and between **DriveGuard Warranty Solutions LLC** ("DriveGuard"), a Texas limited liability company, and the undersigned automotive dealership ("Dealer"). DriveGuard provides third-party extended warranty, gap insurance, and ancillary F&I; products for retail automotive transactions.

1. PRODUCTS AND SERVICES

DriveGuard shall provide Dealer with access to its full suite of F&I; products including: extended vehicle service contracts, GAP insurance, tire and wheel protection, paintless dent repair coverage, key replacement, and theft deterrent packages. Products are administered through DriveGuard's proprietary digital platform integrated with Dealer's F&I; workflow.

2. TERM

The initial term of this Agreement shall be **forty-eight (48) months** from the Effective Date. This Agreement shall **automatically renew** for successive twenty-four (24) month periods unless Dealer provides written notice of non-renewal no fewer than **one hundred eighty (180) days** prior to expiration of the then-current term. Notice must be sent via certified mail to DriveGuard's legal department at the address specified herein.

3. COMPENSATION AND FEES

Item	Amount	Notes
Monthly Platform Fee	\$2,750.00	Per rooftop
Integration Setup	\$6,000.00	One-time, non-refundable
Compliance Training	\$3,500.00	One-time, mandatory
Annual Certification	\$1,800.00	Annual, per rooftop
Marketing Materials	\$450.00	Monthly

3.1 Escalation. The Monthly Platform Fee shall increase by **six percent (6%)** on each anniversary of the Effective Date. This escalation is non-negotiable and reflects increased compliance costs and platform enhancements.

3.2 Minimum Production. Dealer agrees to a minimum production volume of twenty-five (25) F&I; product sales per month. Failure to meet minimum production for three (3) consecutive months shall result in an additional underperformance fee of \$1,500.00 per month until minimums are restored.

4. TERMINATION

4.1 Early Termination Fee. Dealer may terminate this Agreement prior to expiration by paying an early termination fee equal to **the greater of (a) \$35,000.00 or (b) seventy-five percent (75%) of remaining monthly fees** through the end of the then-current term.

4.2 Dealer acknowledges that the early termination fee represents a reasonable estimate of DriveGuard's losses and is not a penalty. This provision shall survive termination of the Agreement.

5. DATA AND INTELLECTUAL PROPERTY

5.1 Platform Data. All data processed through the DriveGuard platform, including but not limited to customer information, transaction records, product performance metrics, and dealer performance analytics (collectively, "Platform Data"), shall be the **exclusive property of DriveGuard**.

5.2 Dealer acknowledges that Platform Data constitutes DriveGuard's trade secrets and proprietary information. Dealer shall have **no right to export, copy, or retain** Platform Data except as displayed through normal use of the platform during the term of this Agreement.

5.3 DriveGuard reserves the right to use aggregated and anonymized Platform Data for benchmarking, product development, marketing, and any other commercial purpose without restriction.

6. NON-COMPETE AND EXCLUSIVITY

During the term of this Agreement and for twelve (12) months following termination, Dealer shall not engage any competing F&I; product provider for the product categories covered by this Agreement. Violation of this provision shall entitle DriveGuard to liquidated damages of \$50,000.00 per occurrence.

7. DISPUTE RESOLUTION

Any dispute arising under this Agreement shall be resolved by binding arbitration administered in Dallas, Texas under the Commercial Arbitration Rules of the American Arbitration Association. Each party shall bear its own attorneys' fees and costs.